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Trump’s Industrial Policy: What’s Right and Wrong
特朗普的产业政策：哪些是对的，哪些是错的

The president uses government leverage to extract equity stakes, profit-sharing deals, and special voting rights from major corporations. These are familiar tools—but Trump’s unchecked dealmaking could be disastrous.

总统利用政府影响力从大型企业获取股权、利润分成协议和特殊投票权。这些都是常见的手段——但特朗普不受约束的交易行为可能会带来灾难性后果。

by **Joel Dodge**

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The Art of the (Government) Deal: President Trump is cutting deal after deal with major corporations. Here, Trump listens as Nvidia CEO Jensen Huang speaks during an event about investing in America in April 2025. Credit: Associated Press

政府交易的艺术：特朗普总统正与各大公司达成一项又一项交易。图中，特朗普正在聆听英伟达首席执行官黄仁勋在 2025 年 4 月的一次关于投资美国的活动中发表讲话 。（图片来源： 美联社）

In recent months, Donald Trump's administration has supplemented its globe-spanning tariffs with bespoke industrial policy deals with U.S. corporations. These include the federal government taking equity stakes in Intel, a "golden share" in U.S. Steel, and profit sharing on Nvidia and AMD's chip sales in China. The deals have astonished and unnerved economic analysts across the political spectrum. Commentators from *The Wall Street Journal* editorial page to MSNBC have decried them as "unprecedented" and amounting to "socialism," "corporatism," or "state capitalism with American characteristics."

近几个月来，唐纳德·特朗普政府除了在全球范围内加征关税外，还与美国企业达成了一系列定制化的产业政策协议。这些协议包括联邦政府持有英特尔的股权、持有美国钢铁公司的"黄金股"，以及分享英伟达和 AMD 在中国的芯片销售利润。这些协议令各政治派别的经济分析人士感到震惊和不安。从 *《华尔街日报》* 社论版到 MSNBC，评论员们纷纷谴责这些协议"史无前例"，并指责其等同于"社会主义"、"企业主义"或"具有美国特色的国家资本主义"。

In truth, Trump's actions are rooted in a long history of presidents from both parties taking temporary control or ownership of systemically important companies. However, until now, most of these interventions have been temporary and involved either wartime emergencies or too-big-to-fail corporate collapse. Under Woodrow Wilson, the federal government took **temporary ownership** of the railroad industry to support troops during World War I. During World War II, Franklin D. Roosevelt's administration directed much of the corporate industrial sector. In 1980, Jimmy Carter's administration extended loan guarantees to Chrysler in exchange for stock warrants. After the company recovered and repaid its loans, the government earned $311 million in capital gains. During the financial crisis, Barack Obama's administration **provided the auto industry with tens of billions of dollars in exchange for equity stakes** and commitments for substantial restructuring.

事实上，特朗普的举措源于两党总统长期以来对具有系统重要性的公司进行临时控制或所有权的做法。然而，迄今为止，这些干预大多是暂时的，且通常涉及战时紧急情况或"大到不能倒"的企业倒闭。伍德罗·威尔逊执政期间，联邦政府在一战期间**临时接管**了铁路行业以支持军队。二战期间，富兰克林·罗斯福政府对大部分工业企业进行了干预。1980 年，吉米·卡特政府向克莱斯勒公司提供贷款担保，以换取股票认股权证。该公司恢复运营并偿还贷款后，政府获得了 3.11 亿美元的资本收益。金融危机期间，巴拉克·奥巴马政府**向汽车行业提供了数百亿美元的资金，以换取股权**和进行大规模重组的承诺。

Trump's moves also build on recent industrial policy interventions by his and Joe Biden's administrations. Until now, those policies stopped short of the government seeking direct influence over corporate governance through golden shares or equity stakes. During his first term, Trump primarily conducted industrial policy through targeted tariffs and trade actions to promote American industry, and by jawboning corporations to boost domestic manufacturing. The Biden administration went further, providing computer chip and clean energy companies with hundreds of billions of dollars—and detailed requirements for how

they could be spent—as part of a long-term post-neoliberal industrial strategy for national security. Those actions were consistent with, though a major step beyond, Trump’s first-term trade policies, just as Trump’s second-term corporate dealmaking is an advance on Biden’s (even if neither president would admit it).

特朗普的举措也建立在他本人和拜登政府近期推行的产业政策干预之上。此前，这些政策并未达到政府通过“黄金股”或股权直接干预公司治理的程度。在第一任期内，特朗普主要通过有针对性的关税和贸易措施来促进美国产业发展，并通过游说企业来提振国内制造业。拜登政府则更进一步，向计算机芯片和清洁能源公司提供了数千亿美元的资金，并详细规定了资金的使用方式，作为一项旨在维护国家安全的长期后新自由主义产业战略的一部分。这些举措与特朗普第一任期的贸易政策一脉相承，但又向前迈进了一大步，正如特朗普第二任期的企业交易策略也比拜登的更进一步（即便两位总统都不会承认这一点）。

So, while Trump’s dealmaking spree is not unprecedented, it ventures into new territory reflecting his strongman tendencies: He has claimed for himself concentrated power to oversee and influence corporate decision-making, authority thus far ceded to him by Congress and the courts. He has operated outside the law through handshake deals that corporations often cannot afford to refuse, endowing the presidency with powerful—and dangerous—economic tools for routine use.

因此，尽管特朗普的交易狂潮并非史无前例，但它已进入一个反映其强人倾向的新领域：他声称自己掌握了集中权力，可以监督和影响企业决策，而此前这项权力是由国会和法院授予他的。他通过口头协议游走于法律之外，而企业往往无法拒绝这些协议，这使得总统拥有了强大且危险的经济工具，可以随意使用。

This is unlikely to be a mere Trump-era aberration. Presidents typically don’t forego inherited powers. Today’s novelty policies may become tomorrow’s precedent, as the last decade has shown. Some elements of industrial policy with Trumpist characteristics may become long-term features of American governance. But Congress and the judiciary should assert democratic and constitutional control over American industrial policy now and in the future to prevent its abuse and, potentially, its collapse.

这不太可能仅仅是特朗普时代的昙花一现。总统通常不会放弃继承的权力。正如过去十年所表明的那样，今天的创新政策可能成为明天的先例。一些具有特朗普主义特征的产业政策要素可能会成为美国治理的长期组成部分。但是，国会和司法部门现在和将来都应该维护美国产业政策的民主和宪法控制权，以防止其被滥用，并最终导致其崩溃。

Here’s a rundown of Trump’s corporate dealmaking thus far:

以下是特朗普迄今为止的商业交易概览：

U.S. Steel: In June, the White House **greenlit** Nippon Steel’s takeover bid for the American steelmaker U.S. Steel. Trump overturned Biden’s blocking of the deal—on the condition that the government receive a “golden share” of the company, allowing it to veto major corporate decisions, such as offshoring jobs and

closing plants.

美国钢铁公司： 今年 6 月，白宫批准了日本制铁公司对美国钢铁制造商美国钢铁公司的收购要约。特朗普推翻了拜登此前对该交易的否决，但条件是政府必须获得该公司"黄金股"，从而拥有否决权，可以否决包括工作岗位外包和工厂关闭在内的重大公司决策。

MP Materials: In July, the Department of Defense **announced** an investment in MP Materials, the country's only active producer of certain rare earth minerals used for military equipment. The deal provided government support for the company, guaranteeing a minimum price for its products and providing a guaranteed buyer—the federal government—for all its output for the next 10 years. The feds also extended a $150 million loan and purchased $400 million in company stock, making it MP's largest shareholder.

MP Materials： 今年 7 月，美国国防部宣布投资 MP Materials 公司，该公司是美国唯一一家仍在生产用于军事装备的特定稀土矿物的企业。这项投资为该公司提供了政府支持，保证了其产品的最低价格，并承诺在未来 10 年内由联邦政府作为其所有产品的固定买家。联邦政府还提供了 1.5 亿美元的贷款，并购买了价值 4 亿美元的公司股票，成为 MP Materials 的最大股东。

Japan: Also in July, the White House **announced** a trade deal with Japan that purportedly included Tokyo creating a $550 billion investment fund for the administration to use toward its industrial policy priorities, including energy infrastructure, semiconductor manufacturing, critical mineral supply chains, pharmaceutical production, and shipbuilding. Japan quickly **contested** the administration's description of the deal, explaining that the investment fund would be nearly entirely composed of loans the U.S. would need to repay.

日本： 同样在 7 月，白宫宣布与日本达成一项贸易协议，据称其中包括东京设立一个 5500 亿美元的投资基金，供美国政府用于其产业政策重点领域，包括能源基础设施、半导体制造、关键矿产供应链、药品生产和造船业。日本迅速对美国政府对该协议的描述提出异议，解释说该投资基金几乎完全由美国需要偿还的贷款构成。

Nvidia and AMD: In August, the administration **agreed** to allow the semiconductor makers Nvidia and Advanced Micro Devices to sell certain modified chips in China, reversing national security restrictions. The companies also agreed to give 15 percent of all profits earned in China to the U.S. government.

英伟达和 AMD： 今年 8 月，美国政府同意允许半导体制造商英伟达和 AMD 在中国销售某些经过改造的芯片，取消了此前的国家安全限制。两家公司还同意将在中国获得的全部利润的 15%上缴美国政府。

Intel: Later that month, the administration took a **10 percent equity stake** in the chipmaker Intel. The deal converted billions of dollars in grants the company was due under the CHIPS and Science Act into equity stakes, making the federal government Intel's largest shareholder. That conversion also, without any legal authority, dispensed with CHIPS Act taxpayer safeguards that required Intel to reach milestones toward

completing new domestic manufacturing sites to receive federal funding.

英特尔：当月晚些时候，美国政府收购了芯片制造商英特尔 **10%的股权**。这项交易将英特尔根据《芯片与科学法案》应得的数十亿美元拨款转化为股权，使联邦政府成为英特尔的最大股东。此外，这一转换在没有任何法律依据的情况下，也废除了《芯片与科学法案》中关于纳税人权益的保障措施，这些措施原本要求英特尔必须达到新建国内制造基地的里程碑才能获得联邦资金。

Trump's economic interventions bear a number of distinctive qualities that expand on industrial policy precedent, but five stand out.

特朗普的经济干预措施具有许多独特的特点，扩展了产业政策的先例，但其中有五点尤为突出。

1. **Unilateralism:** Trump's industrial policy has been personalist, flowing from and controlled by the president himself. Unlike the Biden administration, which shepherded industrial policy bills through Congress, Trump relies exclusively on executive action. His industrial policy has at times been colored by favoritism and personal relationships. The **Nvidia export agreement**, for instance, came after meetings between Trump and CEO Jensen Huang. The president himself asked Huang for a share of the company's Chinese profits. In other cases, bargained-for benefits have been structured to accrue directly under Trump's control. The Nippon Steel agreement gave control of the golden share not to the office of the president **but to Trump himself**; only after he leaves office does the share transfer to the secretaries of treasury and commerce. Finally, the (contested) $550 billion pot from Japan would be, **according** to Secretary of Commerce Howard Lutnick, a fund to be spent however Trump wished—part of "a national security and economic fund managed by Donald Trump."

1. **单边主义：** 特朗普的产业政策带有浓厚的个人色彩，由总统本人主导和掌控。与拜登政府推动产业政策法案在国会获得通过不同，特朗普完全依赖行政命令。他的产业政策有时带有裙带关系和私人恩怨的色彩。例如，**英伟达的出口协议**是在特朗普与首席执行官黄仁勋会面后达成的。总统本人要求黄仁勋分享该公司在中国的利润。在其他案例中，谈判达成的利益也被设计成直接由特朗普掌控。日本钢铁公司的协议将黄金股的控制权授予**特朗普本人，而不是总统**办公室；只有在他卸任后，这些股份才会移交给财政部长和商务部长。最后，**据**商务部长霍华德·卢特尼克称，来自日本的（备受争议的）5500 亿美元资金将由特朗普随意支配——这是"由唐纳德·特朗普管理的国家安全和经济基金"的一部分。

2. **Public ownership in the absence of a fiscal crisis or national security justification**: While direct government ownership of industry is not unheard of in American history, the Trump administration has been uniquely eager to wield it as a routine industrial policy tool. The MP Materials and Intel deals both gave the government equity ownership of private companies, and the U.S. Steel approval netted the government special, powerful veto rights over that company's decision-making. After announcing the (contested) terms of the Japan trade deal, administration officials even **contemplated** **using** the deal's (disputed) investment fund to build government-owned factories that could then be leased to private

companies.

2. **在缺乏财政危机或国家安全理由的情况下实行公有制**： 虽然美国历史上政府直接拥有企业所有权并非史无前例，但特朗普政府却格外热衷于将其作为一项常规的产业政策工具。MP Materials 和 Intel 的交易都使政府获得了私营企业的股权，而对美国钢铁公司的收购则赋予了政府对该公司决策的特殊且强大的否决权。在宣布（备受争议的）日美贸易协议条款后，政府官员甚至考虑利用该协议中（同样备受争议的）投资基金来建设国有工厂，然后再将其租赁给私营企业。

3. **Bullying individual companies:** Trump has a quid pro quo mentality of wanting a cut of any private gains he feels he has facilitated—he has openly compared his presidential dealmaking to waiving property rights on his real estate for the benefit of a third party, in exchange for a fee. When he agreed to grant Nvidia export licenses to sell modified chips in China, Trump told its chief executive, "If I'm going to do that, I want you to pay us something." Or as Lutnick described the Intel equity stake, "If we're going to give you the money, we want a piece of the action."

3. **欺凌个别公司：** 特朗普奉行利益交换的思维模式，他希望从任何他认为自己促成的私人利益中分一杯羹——他曾公开将自己担任总统期间的交易比作为了第三方利益而放弃自己房产的所有权，以换取报酬。当他同意向英伟达发放出口许可证，允许其在中国销售改装芯片时，特朗普对英伟达首席执行官说：“如果我这么做，我希望你们给我们一些钱。”或者正如卢特尼克描述英特尔的股权投资时所说：“如果我们给你们钱，我们也想要分一杯羹。”

4. **Leveraging government power:** Beyond just flexing the rhetorical might of the presidential bully pulpit, Trump has used the levers of government to offer firms deals they can't refuse. The administration has created or exploited bargaining power to induce targeted firms to relent to its demands. Under export control regulations, Nvidia and AMD needed the administration's permission to sell chips in China, forcing them to acquiesce to Trump's profit-sharing demand. Nippon Steel could not take over U.S. Steel without approval from the government's foreign investment review committee. Shortly before Intel agreed to the equity deal, Trump ratcheted up the pressure by calling for its executive to be fired and withholding its CHIPS Act grants.

4. **利用政府权力：** 除了炫耀总统讲坛的雄辩力量外，特朗普还利用政府杠杆向企业提供无法拒绝的交易。本届政府创造或利用了谈判优势，迫使目标企业屈服于其要求。根据出口管制条例，英伟达和 AMD 需要获得政府许可才能在中国销售芯片，这迫使它们同意特朗普的利润分成要求。日本制铁公司若要收购美国钢铁公司，也必须获得政府外国投资审查委员会的批准。在英特尔同意股权交易前不久，特朗普加大了施压力度，要求解雇英特尔高管并扣留了其《芯片法案》的拨款。

Two other examples illustrate Trump's leverage power plays. In May, he issued an executive order instructing pharmaceutical companies to agree to adhere to "most-favored-nation price targets … to bring prices for American patients in line with comparably developed nations." The order threatened that the administration would put the squeeze on pharmaceutical companies that don't comply, through newly authorized competition from drug imports, restrictions on their own exports, antitrust scrutiny, reconsideration of FDA approvals of their drugs, and loss of National Institutes of Health grants. And in August, the administration announced that it would impose high tariffs on semiconductor imports—but

would exempt tech companies that made new domestic investment pledges. The administration thus imposed tariffs to create leverage and offered relief from those tariffs to advance its industrial policy goals.

另外两个例子也说明了特朗普的权力博弈。5 月，他发布行政命令，指示制药公司同意遵守"最惠国价格目标……以使美国患者的药品价格与发达国家持平"。该命令威胁称，对于不遵守规定的制药公司，政府将采取一系列措施，包括允许进口药品参与竞争、限制其自身出口、进行反垄断审查、重新审核 FDA 对其药品的批准，以及取消美国国立卫生研究院的拨款。8 月，政府宣布将对半导体进口征收高额关税，但豁免那些做出新的国内投资承诺的科技公司。由此可见，政府一方面征收关税以积累筹码，另一方面又通过提供关税减免来推进其产业政策目标。

5. **Legally dubious boundary pushing:** Much of Trump's industrial policy has operated in legal gray zones. To bypass routine federal contracting and procurement laws that typically require competitive bidding, the administration's investment in MP Materials relied on a little-used provision of the Defense Production Act authorizing transactions "without regard to the limitations of existing law." Trump's profit-sharing deal with Nvidia and AMD flouts prohibitions on export taxes and fees under both the Constitution and federal law. There is also no firm legal basis under the CHIPS Act to convert Intel's grants into equity (nor was there to withhold its grants in the first place).

5. **游走在法律灰色地带：** 特朗普的许多产业政策都游走在法律灰色地带。为了绕过通常要求公开招标的联邦合同和采购常规法律，特朗普政府对 MP Materials 的投资依赖于《国防生产法》中一项鲜为人知的条款，该条款授权交易"不受现有法律限制"。特朗普与英伟达和 AMD 的利润分成协议公然违反了宪法和联邦法律中关于出口税费的禁令。此外，《芯片法案》也没有确凿的法律依据将英特尔的拨款转换为股权（当初也没有法律依据扣留其拨款）。

Trump has avoided legal constraints by relying on "regulation by deal," rather than legislation or agency rulemaking. (He's also been firing the regulators who would otherwise shape such government interventions.) Companies have acquiesced to White House demands that may not otherwise withstand legal scrutiny to avoid lost business opportunities, the cost and time of litigating against the federal government, and the general ire of the Trump administration. This has insulated much of Trump's industrial policy from administrative procedure, due process, and judicial review.

特朗普依靠"交易监管"而非立法或机构规章来规避法律约束。（他还解雇了那些原本会左右政府干预的监管人员。）为了避免失去商机、耗费大量时间和金钱与联邦政府打官司，以及激怒特朗普政府，企业不得不屈从于白宫的要求，即使这些要求本身可能经不起法律审查。这使得特朗普的大部分产业政策免受行政程序、正当程序和司法审查的约束。

Some elements of Trump's approach are likely to endure. The wraparound support for MP Materials, for example, could well become a model for how the U.S. government cultivates strategically important domestic production. The type of golden share Trump obtained in U.S. Steel could be on the table for future mitigation agreements between the federal government and foreign companies seeking

to invest in critical domestic sectors.

特朗普的一些做法可能会延续下去。例如，对 MP Materials 的全面扶持很可能成为美国政府扶持具有战略意义的国内生产的典范。特朗普在美国钢铁公司获得的那种“黄金股”也可能成为未来联邦政府与寻求投资国内关键行业的外国公司之间**达成的补偿协议**的筹码。

As **I have written for this magazine**, there are also compelling reasons for the government to insist on a direct return on its industrial policy investments. Taking equity stakes in semiconductor companies funded by the CHIPS Act was **originally** a Bernie Sanders proposal. When used in the right context, equity stakes ensure that industrial policy returns upside revenue to the public, instead of merely socializing profits for corporations.

正如**我之前为本杂志撰文指出**，政府坚持要求其产业政策投资获得直接回报，也有其充分的理由。**最初，**伯尼·桑德斯曾提议，允许政府持有由《芯片法案》（CHIPS Act）资助的半导体公司的股权。在恰当的背景下，股权投资能够确保产业政策为公众带来收益，而不仅仅是让企业将利润社会化。

External trends may also lend Trump's industrial policy approach greater staying power. As policymakers seek new revenue sources beyond traditional taxation, they may increasingly look to levers like equity stakes, profit-sharing agreements, and royalties. Congress's tendency toward gridlock and paralysis has long spurred administrations to seek creative executive workarounds, but the courts have increasingly limited the discretion given to the administrative state. That may steer administrations toward regulation-by-deal as a flexible means for the executive branch to regain power from the judiciary.

外部趋势也可能增强特朗普产业政策的持久性。随着政策制定者寻求传统税收以外的新收入来源，他们可能会越来越多地关注股权、利润分成协议和特许权使用费等手段。国会长期以来的僵局和瘫痪促使历届政府寻求创造性的行政变通方案，但法院已日益限制行政部门的自由裁量权。这可能会促使历届政府转向“交易式监管”，将其作为行政部门从司法部门手中夺回权力的灵活手段。

It's not hard to imagine where Trumpist industrial policy may be headed. White House advisers have said they will seek equity stakes in other companies receiving federal grants and loans to seed a sovereign wealth fund. Moreover, if Intel cannot right its ship, it may be forced to revisit previous discussions of spinning off its semiconductor factories to a foreign firm like the Taiwan Semiconductor Manufacturing Company. The Trump administration, which has opposed such a move, could, as Intel's largest shareholder, dictate the terms of such a deal. (Indeed, the Intel agreement included a poison pill to stymie the sale of its foundries.) Plus, any such sale must win the administration's approval through the Committee on Foreign Investment in the United States. One could imagine the administration negotiating on economic and national security grounds for government ownership of Intel's factories, which could then be leased to

another chipmaker.

不难想象特朗普的产业政策会走向何方。白宫顾问表示，他们将寻求持有其他接受联邦拨款和贷款以建立主权财富基金的公司的股权。此外，如果英特尔无法扭转颓势，它可能被迫重新考虑之前提出的将其半导体工厂分拆给台积电等外国公司的方案。特朗普政府一直反对这种做法，但作为英特尔的最大股东，它可能会主导交易条款。（事实上，英特尔的协议中包含一项"毒丸条款"，旨在阻止其晶圆厂的出售。）而且，任何此类出售都必须获得美国外国投资委员会的批准。可以想象，特朗普政府会以经济和国家安全为由，争取英特尔工厂的国有化，然后再将其租赁给其他芯片制造商。

Trump's industrial policy toolkit may empower future administrations with different priorities. For instance, federal policies—steep tariffs and national security exclusions—are sparing U.S. automakers from a **flood** of low-cost, cutting-edge Chinese electric vehicles. A future administration could condition that continued industry protection on American carmakers offering more affordable low-emissions vehicles and ramping up their research and development investments.

特朗普的产业政策工具箱或许能为未来采取不同优先事项的政府提供更多支持。例如，联邦政府的政策——高额关税和国家安全豁免——使美国汽车制造商免受**大量**低成本、尖端中国电动汽车的冲击。未来的政府可能会将这种产业保护与美国汽车制造商提供更经济实惠的低排放汽车并加大研发投入挂钩。

A future administration could use the specter of the government's statutory powers to **limit or override patents** on **federally funded** technologies to negotiate long-term profit-sharing agreements with artificial intelligence companies. It could also use similar authority to negotiate price reductions from pharmaceutical companies and leverage the Medicare Advantage market to acquire golden shares in health insurance companies, with veto power over major corporate decisions.

未来的政府可能会利用其法定权力，**限制或推翻联邦资助**技术的专利权，从而与人工智能公司谈判长期利润分成协议。它还可能利用类似的权力，与制药公司谈判降低药品价格，并利用联邦医疗保险优势计划（Medicare Advantage）市场收购健康保险公司的黄金股，从而对重大公司决策拥有否决权。

A future Democratic administration could grant targeted tariff reductions to countries or companies that decarbonize their energy grids and production processes—and dangle extra reductions to those that use American-made clean energy technology. It could use the Defense Production Act's preemption power to **expedite clean energy** and new housing development around other legal impediments. If the industrial policy arc from the first Trump administration to the Biden administration is any guide, the next

Democratic president will make fulsome use of these kinds of Trump-inspired tools.

未来的民主党政府可能会对那些实现能源网络和生产流程脱碳的国家或公司给予定向关税减免，并对使用美国制造的清洁能源技术的国家或公司提供额外减免。它还可以利用《国防生产法》的优先权，绕过其他法律障碍，**加快清洁能源**和新住房的开发。如果从特朗普第一任期到拜登任期的产业政策走向可以作为参考，那么下一任民主党总统将会充分利用这些受特朗普启发而制定的政策工具。

So sheer inertia may well propel Trumpist industrial policy forward. But there are several stark and urgent reasons Congress and the courts should pump the brakes and reconsider major elements of Trump's approach. For one, this approach may simply yield worse industrial policy. Absent exceeding care and deliberation, go-it-alone executive branch industrial policy can overreach and implode without the safeguards and democratic legitimacy of operating through Congress. Even if Trump's deals successfully evade the courts, a subsequent administration could deem some contrary to law and declare them null and void—regulation by deal has far less long-term durability than regulation by *regulatio*n, let alone legislation. Such whipsawing will make the U.S. government a less reliable, more tumultuous economic actor.

因此，纯粹的惯性或许会推动特朗普的产业政策向前发展。但国会和法院有几个显而易见且紧迫的理由应该踩下刹车，重新审视特朗普政策中的关键要素。首先，这种做法可能只会导致更糟糕的产业政策。如果缺乏高度的谨慎和深思熟虑，行政部门单方面推行的产业政策可能会过度扩张，最终因缺乏国会的保障和民主合法性而崩溃。即使特朗普的协议成功绕过了法院的审查，下一届政府也可能认定其中一些协议违法，并宣布其无效——通过协议进行监管的长期稳定性远不及通过*法规*进行监管，更不用说立法监管了。这种反复无常的政策调整将使美国政府成为一个更不可靠、更动荡的经济主体。

For another, elements of Trump's industrial policy are a recipe for abuse and corruption. Pay-to-play regimes for exporting sensitive technologies to foreign adversaries jeopardize fair competition and national security. Personalist policymaking is a recipe for cronyism, corruption, and favoritism for well-connected dominant firms. As *The New York Times* **reported**, Trump's family was directly benefiting from billions of dollars of investment in its crypto company by the United Arab Emirates—at the same time it agreed to provide the UAE with highly sensitive and valuable advanced semiconductor chips.

另一方面，特朗普的产业政策中某些条款极易滋生滥用职权和腐败。向外国敌对势力出口敏感技术的"付费游戏"机制，危及公平竞争和国家安全。个人主义的政策制定方式，则容易导致裙带关系、腐败和对关系密切的主导企业的偏袒。《*纽约时报*》曾**报道**，特朗普家族从阿联酋对其加密货币公司数十亿美元的投资中直接获益——与此同时，该公司还同意向阿联酋提供高度敏感且极具价值的先进半导体芯片。

It is all too easy to foresee more future gambits redounding to the private benefit of the Trump family (like the Paramount merger with Skydance, which routed $16 million into the Trump presidential library). Moreover, while leverage can be useful for achieving policy aims, marshaling the vast regulatory state as one big pressure cooker to coerce concessions from targeted companies risks undermining other vital

policy interests. **We're already seeing that regarding antitrust**. Companies seeking merger approvals have won favorable treatment from the Trump administration by making side promises for domestic manufacturing investments. The potential for Trumpist misuse of industrial policy risks poisoning the whole enterprise.

很容易预见到，未来特朗普家族还会采取更多有利于自身利益的举措（例如派拉蒙影业与天空之舞影业的合并，这笔交易为特朗普总统图书馆带来了 1600 万美元的收入）。此外，虽然利用杠杆效应有助于实现政策目标，但将庞大的监管机构当作一个巨大的压力锅，以此胁迫目标公司做出让步，可能会损害其他重要的政策利益。**我们已经在反垄断领域看到了这一点**。一些寻求合并批准的公司通过承诺投资国内制造业，赢得了特朗普政府的优待。特朗普滥用产业政策的可能性，可能会毒害整个产业体系。

That's where Congress and the courts come in—or where they should. Congress was a true coequal branch during the Biden administration's major industrial policy programs, shaping and passing the Bipartisan Infrastructure Law, CHIPS and Science Act, and Inflation Reduction Act through normal legislative processes. It could again instill democratic prerogatives and guardrails for industrial policy. Congress could determine when the government should take equity stakes in private companies. It could set ground rules around taking golden shares, like which corporate decisions may be subject to a government veto and which are off-limits. It could set standards around appropriate uses of revenue-sharing deals with the federal government. It could stipulate where the revenue generated from industry policy investments should go and how it should be spent. It could set rules preventing the government from unduly favoring companies where it has taken equity stakes in competitor firms. It could establish safeguards to ensure that industrial policy is not used to enrich public officials. Meanwhile, the courts may need to revisit legal doctrines like standing to ensure that some party can contest deals of questionable legality, like the Nvidia revenue-sharing agreement or the Intel equity swap.

这就是国会和法院应该发挥作用的地方——或者说，它们应该发挥作用的地方。在拜登政府推行重大产业政策期间，国会真正发挥了与政府平等的作用，通过正常的立法程序制定并通过了《两党基础设施法》、《芯片与科学法案》以及《通货膨胀抑制法案》。国会可以再次为产业政策注入民主特权和保障机制。国会可以决定政府何时应该持有私营企业的股权。它可以制定关于持有"黄金股"的基本规则，例如哪些公司决策可能受到政府否决，哪些决策则不受政府干预。它可以制定关于联邦政府收入分成协议合理使用的标准。它可以规定产业政策投资产生的收入应该流向何处以及如何使用。它可以制定规则，防止政府在持有竞争对手公司股权的情况下，过度偏袒那些已经持有竞争对手公司股权的企业。它可以建立保障措施，确保产业政策不被用来中饱私囊，使公职人员无法从中获利。与此同时，法院可能需要重新审视诸如诉讼资格之类的法律原则，以确保某些一方能够对合法性存疑的交易提出异议，例如英伟达的收入分成协议或英特尔的股权互换。

If Congress fails to act, it could be understood as blessing Trump's mode of industrial policy by one-man dealmaking. That doesn't just invite corruption, but is also a recipe for managerial disaster. The Obama administration's masterful overhaul of Detroit is arguably less remembered today than the failure of Solyndra. After receiving an Energy Department loan, the solar panel firm's bankruptcy led to a series of high-profile investigations that ultimately uncovered no criminal wrongdoing or corruption but soured the

public on Obama’s nascent clean energy industrial strategy.

如果国会不采取行动，就等于认可了特朗普一人独断专行的产业政策模式。这不仅会滋生腐败，而且极易导致管理灾难。奥巴马政府对底特律的精妙改造，如今或许远不如 Solyndra 公司的失败那样为人所铭记。这家太阳能电池板公司在获得能源部贷款后破产，引发了一系列备受瞩目的调查。最终，调查并未发现任何犯罪行为或腐败，但却令公众对奥巴马刚刚起步的清洁能源产业战略产生了负面情绪。

With Trump’s state capitalism, the hands-off market fundamentalism era is over. The question is whether the government’s new terms of engagement with industry will be dominated by the president or deliberated on by Congress and the courts. Acquiescence by the other branches to Trump’s deals, warts and all, risks heralding the unchecked and unbalanced industrial policy of the unitary executive. Activation by them, however, could lead to a whole-of-government effort to sand away the roughest edges of Trump’s approach to craft an industrial policy that is both powerful and responsible to effectively guide the country forward.

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